

Authenticity, reliability and admissibility of evidence under the Bharatiya Sakshya Adhiniyam, 2023

Decision support for the law-enforcement team, not legal advice. Admissibility and weight are decided by the court; confirm with the Public Prosecutor / legal cell.

1. Legal framework

The Bharatiya Sakshya Adhiniyam, 2023 (BSA) replaced the Indian Evidence Act, 1872 with effect from 1 July 2024 (proceedings pending on that date continue under the old Act). Electronic and digital records are governed by ss.61-63. Section 61 prevents a court from refusing an electronic record merely because it is electronic and gives it, subject to s.63, the same legal effect as other documents. Section 62 routes proof of its contents through s.63. Section 63(1) deems a computer output to be a document admissible without further proof of the original when the conditions of s.63 are met. Section 63(2) lists four reliability conditions (regular use, ordinary course, proper operation, derivation from ordinary-course input). Section 63(4) requires a certificate in the form in the Schedule — Part A by the person in charge of the device and Part B by an expert, carrying the hash value — to accompany the record each time it is submitted.

2. How the code implements each provision

Provision	Rule (summary)	Praamaan implementation
BSA 2023 s.61 — Electronic or digital record	Admissibility of an electronic or digital record cannot be denied merely because it is electronic; subject to s.63 it has the same legal effect as other documents.	Every exhibit of category 'digital' (mobile phone, CCTV/DVR, computer/storage) gets an electronic-record assessment; the s.61 check records its recognition.
BSA 2023 s.62 — Special provisions as to evidence relating to electronic record	The contents of electronic records may be proved in accordance with s.63.	The 'route' check decides whether the record is proved by producing the original device or by a s.63 computer output + certificate.
BSA 2023 s.63(1) — Admissibility of electronic records	A computer output (paper, stored, recorded or copied in optical/magnetic/semiconductor media) is deemed a document and admissible if the s.63 conditions are satisfied.	Acquisition method is captured (original device / forensic image / exported copy / screen capture / printout) and graded for reliability.
BSA 2023 s.63(2)(a) — Regular use	Output produced while the device was regularly used for an activity regularly carried on by the person having lawful control over it.	ElectronicRecord.regular_use -> check s63_2_a.
BSA 2023 s.63(2)(b) — Ordinary course	Information of the kind in the record was regularly fed into the device in the ordinary course of those activities.	ElectronicRecord.ordinary_course -> check s63_2_b.
BSA 2023 s.63(2)(c) — Proper operation	The device was operating properly, or any malfunction did not affect the record or the accuracy of its contents.	ElectronicRecord.operating_properly (+ CCTV clock offset) -> checks s63_2_c, clock_sync.
BSA 2023 s.63(2)(d) — Derived from ordinary course	The record reproduces or is derived from information fed in the ordinary course of the activities.	ElectronicRecord.derived_from_ordinary_course -> check s63_2_d.
BSA 2023 s.63(4) + Schedule — Certificate (Part A and Part B)	A certificate in the Schedule form must accompany the electronic record each time it is submitted: Part A by the person in charge of the device, Part B by an expert, with the hash value(s).	Checks cert_part_a, cert_part_b, hash_recorded; generate_bsa63_certificate drafts both parts pre-filled with device particulars and hashes.
Integrity (hash) — Hash verification	A hash recomputed at the laboratory must equal the hash recorded at acquisition; any difference means the record changed.	hash_verified check; a mismatch raises HASH_MISMATCH and makes the record AT RISK.
BNSS 2023 s.105 — Audio-video recording of search and seizure	The process of search and seizure, including preparation of the list of seized items, is to be recorded through audio-video electronic means.	CaseInput.seizure_video_recorded -> check seizure_video for every exhibit.
IT Act 2000 s.79A — Examiner of Electronic Evidence	Government-notified examiners provide expert opinion on electronic-form evidence.	Part B expert role is recorded (FSL cyber division / notified examiner / other qualified expert).

Provision	Rule (summary)	Praamaan implementation
Case law (under IEA s.65B, predecessor of BSA s.63) — Anvar P.V. v. P.K. Basheer (2014); Arjun Panditrao Khotkar v. Kailash Kushanrao Gorantyal (2020)	The certificate is a condition precedent when a copy/computer output is relied upon; it is not needed where the original device itself is produced as primary evidence.	Route 'original_device' marks certificate checks as recommended rather than required; every other route makes them required.
Pune Bar Association v. Union of India (SC, 2026, as reported) — Who may sign Part B	Any individual with special skill and expertise in computer science / cyber forensics may sign Part B, if the court is satisfied.	expert_role is free text; Praamaan asks for the designation and qualification basis, not only government notification.

3. Scoring and status (deterministic)

Each check returns PASS, ADVISORY (half credit), MISSING, FAIL or NA. The authenticity score is the weighted share of credit over applicable checks (weights in pramaan/bsa.py: s.63(2)(a)-(d) 7.5 each; Part A and Part B 12.5 each; hash recorded 15; hash verified 10; mode of proof 5; acquisition quality 5; write-blocking 5; clock offset 3; BNSS s.105 video 5; custody checks from the hash-chained ledger). Status is AT RISK when an adverse fact is recorded (hash mismatch, a s.63(2) condition stated unmet, a broken seal, a tampered result), CURABLE GAPS when a required item is missing (e.g. certificate not yet signed), and READY otherwise. For the original-device route the certificate items are recommended rather than required, reflecting Arjun Panditrao Khotkar (2020) under the predecessor s.65B.

4. Lawfulness of the system itself

(a) Data minimisation and victim protection: the privacy gate rejects names, phone, Aadhaar and e-mail patterns on every surface (BNS 2023 s.72; Digital Personal Data Protection Act, 2023). Certificate signatories are stored by designation only; names are written by hand on the signed certificate. (b) No automated legal determination: the module reports readiness and remedies; the court decides admissibility and the prosecutor advises. (c) Integrity: every recorded fact, triage and custody event is appended to a SHA-256 hash-chained ledger, and each output carries the knowledge-base and result hashes, so the assessment itself can be audited. (d) Human in the loop: officers record facts; overrides need reasons; nothing is filed automatically. (e) Transparency: rules, weights and statutory mapping are in source code and this document.

5. Law-enforcement team workflow

Investigating Officer: records acquisition method, device particulars, hash at seizure, s.63(2) facts and BNSS s.105 video status (record_electronic_evidence / dashboard form). Person in charge of the device: signs Part A (drafted by generate_bsa63_certificate). FSL cyber division / qualified expert: re-computes the hash (hash_at_lab) and signs Part B. Legal cell / Public Prosecutor: reviews the authenticity report (READY / CURABLE GAPS / AT RISK) before the charge sheet. SHO: ensures custody events are recorded at every hand-over.

6. Limitations

Statutory text is summarised, not reproduced; verify against the official BSA text and the Schedule. Case law cited was decided under the Indian Evidence Act s.65B and is applied by analogy. Recent decisions (e.g. the 2026 Supreme Court ruling on who may sign Part B, as reported) should be confirmed from official reports.